

terms the nature and particulars of the party's claim. If any documents are relied on, they are merely referred to, if they should have already appeared in the pleadings; but, if not, such part of them as are relied upon should be set out. It is the practice to allow of amendments to the state of facts and charge without much restriction, if such amendments are required to make the charge square with the evidence. On the day appointed to hear and determine the parties should endeavour to be prepared with all their evidence, as if they were preparing for a trial at Nisi Prius, for the Master will only grant a postponement or adjournment on good cause shown, and not where there has been neglect or unnecessary delay. The witnesses are subpoenaed in the same manner as at the hearing, the hearing appointment being signed by the Master. When the reference is for the appointment of a Receiver or Guardian, or a Trustee, instead of a charge, a proposal is brought in, and the opposite party can bring in a counter proposal, and the Master hears evidence to enable him to determine between them. He may reject any proposal, and then another must be brought in. The report of the Master as to a Receiver, Guardian or Trustee is final, and constitutes appointments without further Order.

In examining any party to the suit before the Master it was usual to file interrogatories, which were settled by the Master, or he might order the examination to be *viva voce*. But there will be no interrogatories under the present practice unless the Court so orders. See *ante* New Order 53. The examination of witnesses is under the above mentioned 53rd Order always *viva voce*. Evidence is often admitted on affidavit, but only by consent.

The manner of completing the Report is clearly enough laid down by the above New Orders.

The 48th New Order as to the admission of documents is not in its terms confined to any particular stage of the cause after replication, and would therefore seem to apply to examinations in the Master's Office.

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